

Mutual Non-Disclosure Agreement

Confidentiality Terms

1. Purpose

The parties wish to explore a business relationship and may disclose confidential information. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.

2. Definition

Confidential Information means any non-public information disclosed by one party to the other. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.

3. Obligations

The Receiving Party shall not disclose Confidential Information to any third party. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.

4. Exclusions

Confidential Information does not include information that becomes publicly available. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.

5. Term

The obligations of confidentiality shall survive for a period of three (3) years. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.

6. Remedies

The parties agree that monetary damages may be inadequate and injunctive relief is appropriate. The parties acknowledge that the obligations set forth herein are material and that each party has relied upon the representations of the other in entering into this agreement. No waiver of any provision shall be effective unless made in writing and signed by an authorized representative.